NSW GOVERNMENT Fair Trading

Strata Mediation Application Form

A person may apply for mediation with NSW Fair Trading of any matter for which an order may be sought from the NSW Civil & Administrative Tribunal (NCAT) under *the Strata Schemes Management Act 2015*. Read the NCAT Strata Schemes Fact Sheet (https://ncat.nsw.gov.au/content/dam/dcj/ctsd/ncat/documents/factsheets/ccd_factsheet_strata_schemes.pdf) more information before lodging this application.

For general information, please contact NSW Fair Trading on 13 32 20

1. Strata Building or community scheme

Provide the details of the building/scheme this application relates to.

Strata plan or community plan number

You may find this on your levy notice, meeting minutes or rental agreement.

Having trouble locating your strata plan number? You can search for it on **NSW Land Registry website** (https://online.nswlrs.com.au/wps/portal/six/find-records/!ut/p/z1/jY-7DoJAEEW_xYJSZkAeq90iUUBN1MSI2xjABTXAkgX5fhFbRaebyTk3d4BBCKyM2lsWNTdRRnm3n5h1nm41ojIED1AjBOlq5xh7faEhseDYA_Ml9Qx7jYgG0dF3Hc-1pxtE3wL2jz8AvHz8MhQ7n_XIUINfGQGwLBfx-11axhOSAZM85ZJL9SG787VpqnqmoIJ1ceHtWPJMTWqTqKmQCVcTUSj4Sb6KuoHwmwNVcQjxbubtmo6eOKJPyQ)

*** Enter plan number (including "SP" or "DP")**

Strata building or community scheme address

Enter the building address

○ **Search** ○ **Enter Manually**

Enter Address

How many units are in the building?

*** Select the number of units**

- ○ 2 Units
- ○ 3-99 Units
- ○ 100+ Units

2. Applicant Details

! **Total number of applicants and respondents combined cannot exceed 6. If more applicants and/or respondents need to be included in this application for mediation please make a note in "Any additional information" below and a Fair Trading Officer will contact you to obtain extra details.**

Provide your details or, if you are assisting someone else, the details of the tenant/occupant/unit owner you are helping.

Applicant type

*** Who is the applicant?**

- ◯ Unit owner
- ◯ Tenant
- ◯ Owners Corporation
- ◯ Other (specify)

Do you want to add co-applicant?

- ☐ Yes

Will you require special assistance on the day of the mediation?

- ☐ Yes

Do you require an interpreter?

- ☐ Yes

3. Respondent Details

Respondent type

! **The person you are in dispute with is sometimes called the respondent.**

Provide the details of the person you are in dispute with. Fair Trading will use this information to contact them to arrange mediation.

Select the option or options that best describes the person or corporation involved.

! **A strata manager or building manager can only be named as the respondent in relation to an agreement for the appointment of a strata managing agent or building manager for the scheme, and the applicant must be the owners corporation.**

If your issues relate to the management of your scheme, you need to apply for mediation with the owners corporation as the respondent.

*** Respondent Type**

- ◯ Unit owner
- ◯ Tenant
- ◯ Owners Corporation
- ◯ Strata Manager
- ◯ Building Manager
- ◯ Developer - Original owner
- ◯ Other (specify)

Respondent details

Do you want to add co-respondent?

- [ ] Yes

4. Your Issue

Select all the issues in dispute (one or more):

! You will have an opportunity to provide more information later.

Issues relating to the property by-laws

- [ ] Amend/rescind a by-law
- [ ] Appearance of lot
- [ ] Behaviour of owners/occupiers and invitees
- [ ] Change in use or occupation of lot to be notified
- [ ] Changes/damage to common property
- [ ] Children playing on common property
- [ ] Cleaning windows and doors
- [ ] Compliance with planning and other requirements
- [ ] Damage to lawns and plants on common property
- [ ] Disposal of waste—bins for individual lots
- [ ] Disposal of waste—shared bins
- [ ] Exclusive use/common property rights by-law
- [ ] Floor covering
- [ ] Hanging out of washing
- [ ] Keeping of animals
- [ ] Noise
- [ ] Obstruction of common property
- [ ] Preservation of fire safety
- [ ] Smoke penetration e.g. nuisance smoking
- [ ] Storage of inflammable liquids and other substances and materials
- [ ] Vehicles e.g. parking areas
- [ ] Other by-law issue

Issues relating to common property

- [ ] Alterations & additions to common property
- [ ] Exclusive use of common property
- [ ] Repairs/maintenance of common property
- [ ] Use of common property

Issues relating to the management of the property

- [ ] Exercise of duties/functions on behalf of the owners corporation
- [ ] Insurance
- [ ] Levies/finances/budget
- [ ] Meeting procedures
- [ ] Other fees and charges
- [ ] Removal of strata committee member from office/committee

Other Issues

- [ ] Damage to a lot
- [ ] Neighbouring 'contiguous' strata scheme
- [ ] Nuisance/hazard
- [ ] Prospective collective sale
- [ ] Request for renovations/alterations & additions

Can’t find the appropriate issue?

- [ ] Other

Any additional information

List any information you want Fair Trading to know, that you do NOT want passed on to the respondent eg: dates you will be away and not available for mediation

5. Issue Description

! **All information in this section (5. Issue Description) will be shared with the respondent.**

* **Enter detailed description**

Attachments

Attach any relevant supporting documents.

! **Any attachments you provide will be given to the respondent. Do not include any of your personal details, e.g. your contact information, if you do not want the respondent to receive them.**

Upload attachments (Max. limit is 25MB. Do not upload zip files and avoid file names longer than 80 characters) +

What are you hoping to achieve from mediation?

* **List the outcomes you want to achieve from mediation**

6. Review & declaration

Review your application carefully before submitting

Carefully read and check the information you have provided in this application. You can preview a PDF of the information you have provided at the bottom of this page – this will open a new window for you to review. If you need to change or update anything, do so before you click submit.

Once you click submit you will receive the case number of your application. An email will be sent acknowledging receipt of your application, including a link to download a PDF summary of your application for your records.

Collection and disclosure of information

Information that you voluntarily provide in this form is collected by the NSW Department of Customer Service, 2-24 Rawson Place, Haymarket NSW 2000 (the Department) in order to assess and process your application under the Strata Schemes Management Act 2015 or Community Land Management Act 2021. If you do not provide the information requested in the form, the Department may not be able to process your application. The Department may need to use and disclose the information (including any personal information) you have provided to exercise its functions to arrange and conduct mediations under those Acts. The Department manages personal and health information in line with NSW privacy laws. Under these laws, you have the right to access and correct your personal information.

*** Declaration of acceptance**

☐ I have reviewed my application details carefully and accept the above terms.

Submit Cancel Preview